

22STCP04080 22STCP04080

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Case Number: 22STCP04080 Hearing Date: July 10, 2026 Dept: F49

Dept. F49

Date: 7/10/26

Case Name: Theodore Sandoval vs. Providence Health
System – Southern California, et al.

Case No. 22STCP04080

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 10, 2026

MOTIONS TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS; REQUESTS FOR
SANCTIONS

Los Angeles Superior

Court Case No. 22STCP04080

Motion filed: 11/17/25

MOVING PARTY: Plaintiff Theodore Sandoval

RESPONDING PARTY: (1) Defendant Providence Health System—Southern California dba Providence Holy Cross Medical Center; (2) Defendant Providence Health System – Southern California dba Providence Holy Cross Sub-Acute and Providence Holy Cross Med Center D/P SNF

NOTICE: OK

RELIEF REQUESTED:

(1) An order from this Court: (a) compelling Defendant Providence Health System—Southern California dba Providence Holy Cross Medical Center to further respond to Plaintiff's Request for Production of Documents, Set One, Nos. 10-13, 21, 27-31, 42-43, 46-54, 56, 58, 64, and 68; and (b) awarding sanctions in the amount of \$9,165.00.

(2) An order from this Court: (a) compelling Defendant Providence Health System—Southern California dba Providence Holy Cross Sub-Acute and Providence Holy Cross Med Center D/P SNF to further respond to Plaintiff's Request for Production of Documents, Set One, Nos. 3, 5-7, 17, 25, 27, 33, 35, 37, 39-49, 53, 57, 59, 64, 69-88, 90-99, 102, 106, 110-11, 113, 114, 117, 123, and 125-129; and (b) awarding sanctions in the amount of \$9,165.00.

TENTATIVE RULING: The motions are GRANTED. The requests for sanctions are GRANTED IN PART.

BACKGROUND

This action arises from injuries that Plaintiff Theodore Sandoval ("Plaintiff") allegedly sustained while receiving health care and treatment from Defendants.

On November 14, 2022, Plaintiff filed the Complaint against Defendants Providence Health System – Southern California dba Providence Holy Cross Medical Center ("Providence Holy Cross"), Providence Health System – Southern California dba Providence Holy Cross Sub-Acute and Providence Holy Cross Med Center D/P SNF ("Providence Sub-Acute"), Boris Borazani, M.D. ("Borazani"), Evan J. Valle, M.D. ("Valle"), Providence Health & Services, Parkwest Rehabilitation Center, LLC dba Parkwest Healthcare Center ("Parkwest"), Crystal Solorzano ("Solorzano"), and Does 1 through 100. The Complaint alleges two causes of action: (1) Dependent

Adult Abuse/Neglect (Pursuant to Welfare and Institutions Code § 15600, et seq.), and (2) Violation of Resident's Rights (Pursuant to Health & Safety Code § 1430(b)).

On August 21, 2025, Borazani and Valle were dismissed from the action.

On November 17, 2025, Plaintiff filed the instant motions to compel Providence Holy Cross and Providence Sub-Acute to further respond to the requests for production propounded on each of them.

On February 4, 2026, Providence Holy Cross and Providence Sub-Acute filed their respective Oppositions.

On February 10, 2026, Plaintiff filed his Replies.

On February 19, 2026, the Court ordered the parties to meet and confer regarding outstanding discovery. Pursuant to this Order, on July 1, 2026, the parties filed a joint brief regarding the discovery at issue.

ANALYSIS

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310, subd. (a).)

A. Procedural Requirements

(1) Timeliness of Motions

A party must bring a motion to compel further responses to requests for production within 45 days after the responding party serves verified responses or supplemental verified responses. (Code Civ. Proc., § 2031.310, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.) If a motion to compel further responses is not timely made, the propounding party waives any right to compel a further response. (Ibid.)

Although not “‘jurisdictional’ in the fundamental sense, [the time limit] is ... ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Providence Holy Cross and Providence

Sub-Acute each served unverified responses to Plaintiff’s Requests for Production for Documents, Set One on April 9, 2025, verified supplemental responses on September 16, 2025, further unverified supplemental responses on September 23, 2025, and further supplemental verifications on October 30, 2025. (Mot., Kang Gordon Decl., ¶¶ 8-9, 25-26, 30-31, 40-41, 45, Exhs. 6-7, 24, 23-29, 38-39, 43.) The verifications were served via email. (Id., ¶ 45; Exh. 43.) The deadline to bring motions to compel further responses was thus December 16, 2025. (Code Civ. Proc., §§ 1010.6, 2031.310.) The motion, filed on November 17, 2025, was accordingly timely.

(2)

Meet and Confer

A motion to compel further responses to a demand for production must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

Plaintiff documents written and

telephonic meet and confer communications between the parties between the service of initial responses and the filing of the motions. The Court ordered further meet and confer in its February 19, 2026 ruling on related discovery

motions. (Minute Order, Feb. 19, 2026, at p. 11.) Pursuant to that Order, the parties filed a joint brief regarding discovery on July 1, 2026, indicating that they met and conferred telephonically to discuss the pending motions and resolved disputes over a number of the requests at issue. (See generally Joint Brief, July 1, 2026.)

The Court finds Plaintiff's meet and confer effort to be satisfactory.

(3)

Separate Statement

A motion to compel further responses to a demand for production must be accompanied by a separate statement. (Cal. Rules of Court, rules 3.1345, subd. (a)(3).) "A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue." (Id., rule 3.1345, subd. (c).)

Plaintiff has filed a separate statement concurrently with each motion, stating the text of both the requests at issue and the responses, indicating why the responses are believed to be inadequate, and providing reasons why further response should be compelled. The Court thus finds that Plaintiff has complied with the requirements of California Rules of Court, Rule 3.1345.

B.

Motion to Compel Further Responses From Providence Holy Cross

The party to whom a demand for production has been made must respond separately to each demand by any of the following: (1) a statement that the party will comply with the demand by the date set; (2) "[a] representation that the party lacks the ability to comply with the particular demand;" or (3) an objection to the demand. (Code Civ. Proc., § 2031.210, subd. (a).)

A statement of compliance with a particular demand must state whether compliance will be made in whole or in

part, and “that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

“A representation of inability to comply with [a] particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (Code Civ. Proc., § 2031.230.) The statement must also set forth the name and address of any person or organization known or believed to have possession, custody, or control of that item or category of item. (Ibid.)

If the responding party objects to the demand, the response must: (1) identify with particularity any document or item falling within the category of the demand to which an objection is being made; and (2) clearly set forth the extent of and specific ground for the objection. (Code Civ. Proc., § 2031.240, subd. (b).) “If an objection is based on a claim of privilege, the particular privilege invoked shall be stated.” (Id., § 2031.240, subd. (b)(2).)

In addition to identifying the insufficiency of responses to a demand for production, a motion to compel further response “shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) Good cause may be shown by a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Information is relevant to the subject matter if it “might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.” (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611, emphasis omitted.)

(1)

The Responses at Issue

The parties indicate in their joint brief that the only responses that remain at issue are those to Plaintiff’s Request for Production of Documents, Set One, Nos. 11, 13, and 43. (Joint Statement, July 1, 2026, at pp. 6-8.) The Court accordingly narrows its focus

solely to those requests.

(a)

Request Nos. 11 and 13

Request Nos. 11 and 13 are identical, seeking “all DOCUMENTS constituting any Incident Reports and/or Unusual Occurrence Reports relating to the PLAINTIFF relating to any events occurring during the residency of the PLAINTIFF at the SUBJECT HOSPITAL. (If any DOCUMENTS are being withheld on the basis of privilege, the responding defendant must provide a privilege log.).” (Plaintiff’s Separate Statement (“Pl. SS”), at pp. 9, 17.)

The Court notes that the parties do not dispute the relevance of the requests. They seek documents pertaining to Plaintiff’s injuries and the recordation thereof, which would tend to show whether his treatment and care met relevant standards. Good cause accordingly exists for the discovery demanded.

Providence Holy Cross’s initial response to these requests asserts only objections, and its supplemental and corrected supplemental responses refer Plaintiff to the privilege log provided to Plaintiff. (Pl. SS, at pp. 9-10, 17-18.)

Plaintiff contends that Providence Holy Cross’s privilege log is insufficient because it asserts objections that are not recognized as privileges under the Discovery Act. (Pl. SS, at pp. 11, 19.) Plaintiff further contends that the recognized privileges that Providence Holy Cross asserts do not justify withholding the documents. (Id., at pp. 11-12, 19-20.)

Providence Holy Cross maintains that the response and privilege log provided are code-compliant, and that the internal incident reports requested are immune from discovery under statute. (Opp’n, at pp. 11-12; Joint Statement, July 1, 2026, at p. 7.)

The Court agrees with Plaintiff that some “privileges” asserted by Providence Holy Cross are not recognized as such by statute. Whether they are asserted as objections or as privileges, however, Providence Holy Cross has the burden of substantiating them.

Evidence Code section 1157 provides, in relevant part, that the proceedings and records of an organized medical committee or peer review body responsible for the evaluation and improvement of the quality of care rendered in a hospital are not discoverable. (Evid. Code, § 1157, subd. (a).) Where the information requested “is not obviously within the sole purview of a protected committee,” the party resisting discovery bears the burden of showing that the material is protected under section 1157. (*Santa Rosa Memorial Hospital v. Super. Ct.* (1985) 174 Cal.App.3d 711, 727.)

Providence Holy Cross relies on *Sierra*

Vista Hospital v. Superior Court (1967) 248 Cal.App.2d 359 and *Scripps Health v. Superior Court* (2003) 109 Cal.App.4th 529 to contend that incident reports are absolutely protected from disclosure under section 1157. Neither case so holds, and neither case actually considers section 1157 immunity. The decisions in both *Sierra Vista* and *Scripps* were limited to whether the incident reports at issue were prepared in anticipation of litigation and would fall within the scope of attorney-client privilege. (*Sierra Vista*, supra, at pp. 363-364; *Scripps*, supra, at p.

536 “[W]e have no need to discuss application of ... the privilege for hospital peer review materials contained in section 1157.”.) Moreover, Providence Holy Cross provides no facts substantiating this objection. The “privilege log” provided does not include any information demonstrating that the documents requested constitute proceedings or records of a “peer review body” within the meaning of the statute, listing document authors but not their titles or the purpose for which the documents were prepared. (See *Kang Gordon Decl.*, Exh. 15.) The Court accordingly rejects the use of section 1157 as a justification for Providence Holy Cross’s wholesale withholding of the documents requested.

As to the other “privileges” claimed by

Providence Holy Cross in response to these requests, they remain similarly unsupported. The privilege log lists eight documents responsive to the requests and asserts the following four protections to each: (1) quality assurance and peer review privilege, (2) confidential business information, (3) confidential proprietary information, and (4) attorney-client privilege and work product protection. (*Kang Gordon Decl.*, Exh. 15.) Each document is titled “Providence Quality/Risk Event Reviewer Form,” lists its author, describes the document as an “internal report and investigation” regarding various irregularities concerning Plaintiff’s treatment, and indicates that it was shared among various other staff, risk managers, and attorneys. (*Ibid.*) As Plaintiff

notes, however, the privilege log omits the titles of the six authors and the purpose for which each document was prepared, and fails to provide the nature of the information contained within the reports that would render the information proprietary or subject to any confidentiality protection.

Based on the foregoing, the Court finds that Providence Holy Cross's privilege log in response to Request Nos. 11 and 13 is deficient. Provision of a deficient privilege log, however, does not permit the Court to impose a waiver of the attorney-client privilege or work product protection by ordering production of documents claimed to be privileged. (*Catalina Island Yacht Club v. Super. Ct.* (2015) 242 Cal.App.4th 1116, 1127.) Instead, where insufficient information is provided for the Court to evaluate attorney-client privilege and work product, the Court may "order the responding party to provide a further response by serving ... a supplemental privilege log that adequately identifies each document the responding party claims is privileged and the factual basis for the privilege claim." (*Ibid.*) If the responding party then fails to adequately comply with the Court's order, the propounding party may bring another motion seeking further response or a motion for escalating sanctions. (*Ibid.*)

Based on the foregoing, the Court GRANTS the motion as to Request Nos. 11 and 13 and orders Providence Holy Cross to serve a supplemental privilege log that complies with the foregoing requirements.

(b)

Request No. 43

Request No. 43 seeks "all DOCUMENTS in the custody, control or possession of the responding party evidencing the patient classification system for determining nursing care needs of individual patients on the wing station or units on which the PLAINTIFF was a patient in accordance with the provisions of Title 22 California Code of Regulations §70217(b) during the time period of the SUBJECT HOSPITALIZATION." (Pl. SS, at p. 47.)

Providence Holy Cross's initial response to Request No. 43 asserts objections, and the initial and supplemental responses refer Plaintiff to two exhibits provided via Dropbox link. (Pl. SS, at pp. 47-48.)

Plaintiff argues that the supplemental responses referring Plaintiff to Dropbox links are noncompliant because they do not indicate whether Providence Holy Cross is complying in whole or in part with the request, and do not disclose what documents are being withheld if compliance is being made only in part. (Pl. SS, at p. 50.) Plaintiff adds in the parties' joint brief that the referenced exhibits are non-responsive and incomplete and that a link embedded within one of the documents is broken. (Joint Brief, July 1, 2026, at pp. 7-8.)

Providence Holy Cross contends that the two documents served are responsive to the relevant inquiry and a further response need not be compelled. (Joint Brief, July 1, 2026, at p. 7.)

The Court agrees that, on its face, Providence Holy Cross's responses to Request No. 43 do not comply with the requirements of the Discovery Act. A statement of compliance must state whether compliance "will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Code Civ. Proc., § 2031.220.) Providence Holy Cross's responses include only a bare reference to an Exhibit M and an Exhibit KK. (Pl. SS, at p. 48.) The failure to indicate whether compliance is made in whole or in part renders it unclear whether other responsive documents exist which are being withheld.

Plaintiff asserts that the documents sought by Request No. 43 are relevant to establishing both negligence and causation. (Pl. SS, at p. 50.) Plaintiff explains that the hospital's classification of patients informs its determination of the nursing care requirements for those patients. (Ibid.) Documents related to its classification system will therefore show whether Providence Holy Cross's practice during Plaintiff's residency was to deprioritize patient care, leading to Plaintiff's injuries. (Ibid.) Providence Holy Cross does not dispute that the documents are relevant to the action. The Court accordingly finds that there is good cause justifying further response.

As to the quality of the documents produced, Plaintiff asserts that the hyperlink embedded within Exhibit KK, which contains the classifications requested, is non-functional, rendering the

production incomplete and non-compliant. (Joint Brief, July 1, 2026, at pp. 7-8.) Providence Holy Cross does not address this issue in either its Opposition or in the joint brief filed with the Court on July 1, 2026. Provision of a purportedly responsive document via a method that is unviewable by the propounding party is equivalent to non-production.

Based on the foregoing, the Court GRANTS
the motion as to Request No. 43.

C.

Motion to Compel Further Responses From
Providence Sub-Acute

(1)

The Responses at Issue

The parties indicate in their joint
brief that only two responses remain at issue: those to Request Nos. 33 and
128. (Joint Brief, July 1, 2026, at pp. 5-6.)

(a)

Request No. 33

Request No. 33 seeks "DEFENDANTS'
organizational charts identifying officers, members, directors, owners and
employees, which was effective at the time of PLAINTIFF'S RESIDENCY." (Pl. SS,
at p. 32.)

Providence Sub-Acute's initial response
asserts objections, and the initial and supplemental responses both refer
Plaintiff to "Exhibit V on the included Dropbox link." (Pl. SS, at pp. 32-33.)

Plaintiff contends that this response is
incomplete because it does not indicate whether compliance will be made in
whole or in part and does not disclose what documents are being withheld if
compliance is only being made in part. (Pl. SS, at p. 34.) Providence Sub-Acute
asserts that the substantive response is sufficient and no further response
need be compelled. (Joint Brief, July 1, 2026, at pp. 5-6.)

As discussed above, a bare statement

directing the propounding party to documents without indicating whether those documents represent full or partial compliance with the request is inadequate under Code of Civil Procedure section 2031.220. The Court finds the response to be non-compliant. To the extent that Providence Sub-Acute suggests that Exhibit V is the only document responsive to Request No. 33, the response should so indicate.

The Court further finds that good cause justifies further response. Documents regarding the organizational structure of Providence Sub-Acute during Plaintiff's residency necessarily include information concerning the parties responsible for the oversight and administration of Plaintiff's care and maintenance of his records. (See Pl. SS, at p. 35.)

While Providence Sub-Acute's response to Request No. 33 generally objects on grounds of privacy, confidentiality, and overbreadth, it does not offer any facts either in its response or Opposition substantiating these objections.

Based on the foregoing, the Court GRANTS the motion as to Request No. 33.

(b)
Request No. 128

Request No. 128 seeks "[a]ny and all sign in sheets RELATED TO the training of employees REGARDING safety of residents at the SUBJECT SNF from January 1, 2018 to present." (Pl. SS, at p. 361.)

Providence Sub-Acute's substantive responses to this request refers Plaintiff to two documents produced via Dropbox link (initial response) and indicate that compliance will be made for the abbreviated period of September 1, 2020 through April 1, 2021 (supplemental and corrected further supplemental responses). (Pl. SS, at pp. 361-363.)

Plaintiff argues that the response is incomplete because it improperly narrows the inquiry to September 1, 2020 until April 1, 2021 rather than the broader period requested. (Joint Brief, July 1, 2026, at p. 6.) Providence Sub-Acute generally states that the request is

overbroad but provides no justification for limiting it to the time period specified in response. The Court accordingly finds the response to be incomplete.

Plaintiff asserts that training documents are relevant to whether staff tending to Plaintiff during his residency at Providence Sub-Acute were properly trained according to mandatory standards applicable to the facility. (Pl. SS, at p. 365.) The Court agrees that deployment of unqualified personnel would tend to show a pattern of neglect for patient care that resulted in Plaintiff's injuries. Providence Sub-Acute does not challenge the relevance of the request in its Opposition. The Court accordingly finds good cause justifying further response.

As with its objections to Request No. 33, Providence Sub-Acute's objections asserted in response to Request No. 128 are general and lack specific factual support.

Based on the foregoing, the Court GRANTS the motion as to Request No. 128.

D.

Monetary Sanctions

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

Pursuant to Code of Civil Procedure section 2023.030, the Court may impose a monetary sanction on any person, party, or attorney who engages in misuse of the discovery process. Misuses of the discovery process include: making, without substantial justification, an unmeritorious objection to discovery; and making an evasive response to discovery. (Code Civ. Proc., § 2023.010, subd. (f).)

Plaintiff seeks sanctions against Providence Holy Cross and Providence Sub-Acute in the amount of \$9,165.00 each on the grounds that they

delayed discovery by repeatedly failing to respond with substantive responses to Plaintiff's requests, necessitating the motions. The requests are based on Plaintiff's counsel's hourly rate of \$650.00 for 14 hours' work meeting and conferring and preparing the motions and supporting documents, plus a \$65 filing fee, for each motion. (Kang Gordon Decl., ¶¶ 82, 137.) Plaintiff's counsel attests that the actual time spent on each motion was greater. (Ibid.)

Given that the

Court has found that the responses at issue to remain deficient despite both statutory and Court-ordered meet and confer, the Court finds sanctions to be appropriate under the circumstances. Providence Holy Cross asserts that Plaintiff did not exhaust meet and confer efforts prior to filing the motion and that sanctions are therefore not warranted. However, the standard for meet and confer is that Plaintiff make a reasonable attempt, not an exhaustive attempt. (Code Civ. Proc., § 2016.040.) Although the Court ordered further meet and confer after the motions were filed, and the parties did make considerable headway in resolving most issues, the persistence of issues concerning some responses indicates that court intervention was nevertheless necessary.

The Court

finds Plaintiff's counsel's hourly rate of \$650.00 to be reasonable. However, the Court finds the total hours claimed to be excessive for a litigator with Plaintiff's counsel's experience and specialization in matters of this type. The Court determines that the total and reasonable attorney fees connected with each motion are \$3,315.00, calculated as 5 hours reasonably spent at an hourly rate of \$650.00, plus the \$65 filing fee.

The requests for sanctions are thus

GRANTED IN PART.

CONCLUSION

The Court GRANTS Plaintiff's motion to compel Defendant Providence Health System—Southern California dba Providence Holy Cross Medical Center to further respond to Plaintiff's Request for Production of Documents, Sets One. Defendant Providence Health System—Southern California dba Providence Holy Cross Medical Center is ordered to serve further response to Plaintiff's Request for Production of Documents, Set One, No. 43, and to produce documents accordingly, within 30 days. Defendant Providence Health System—Southern California dba Providence Holy Cross Medical Center is further ordered to serve

a supplemental privilege log to Request Nos. 11 and 13 within 30 days, consistent with the foregoing ruling.

The

Court GRANTS Plaintiff's motion to compel Defendant Providence Health System—Southern California dba Providence Holy Cross Sub-Acute and Providence Holy Cross Med Center D/P SNF to further respond to Plaintiff's Request for Production of Documents, Set One. Defendant Providence Health System—Southern California dba Providence Holy Cross Sub-Acute and Providence Holy Cross Med Center D/P SNF is ordered to serve further response to Plaintiff's Request for Production of Documents, Set One, Nos. 33 and 128, and to produce documents accordingly, within 30 days.

Plaintiff's requests for sanctions are GRANTED IN PART.

Defendant Providence

Health System—Southern California dba Providence Holy Cross Medical Center is ordered to pay \$3,135.00 to Plaintiff's counsel within 30 days.

Defendant

Providence Health System—Southern California dba Providence Holy Cross Sub-Acute and Providence Holy Cross Med Center D/P SNF is ordered to pay \$3,135.00 to Plaintiff's counsel within 30 days.

Moving party to give notice.